

1 client made a 911 call. You saw body cam footage of
2 my client at the scene cooperating with police.

3 This is not a hit and run.

4 Fourth, Mr. Rosario references Dustin
5 Roseman.

6 You saw for yourself and you heard
7 Officer Thompson say that she interviewed Mr. Rosemont
8 and that he was very intoxicated and didn't know what
9 happened.

10 Fifth, Mr. Rosario argues that there is a
11 scuff on my client's vehicle.

12 There is absolutely no evidence that that
13 scuff was caused as a result of this incident or that
14 it is related to Mr. Rosario's leather jacket.

15 There is no evidence before you of that. The
16 scuff could have been on my client's vehicle before
17 the incident.

18 Mr. Rosario had an opportunity to produce
19 that photograph to Mr. Fernandez and inquire of him.
20 He didn't do that.

21 He also had an opportunity to show that
22 photograph to my client and ask him about it. He
23 chose not to do that.

24 The only evidence before you is that both
25 Officer Fernandez and my client testified that there
26 was no damage to my client's vehicle as a result of
27 this incident.

28 All of the evidence presented establishes